

24STCV01820 24STCV01820

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-08-11

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Case Number: 24STCV01820 Hearing Date: August 11, 2026 Dept: 731

[TENTATIVE] ORDER RE: GENERAL

MOTORS LLC'S MOTION TO STRIKE OR TAX COUNSEL'S MEMORANDUM OF COSTS

Moving Party: Defendant, General Motors, LLC

Opposing Party: Plaintiff, Stella-Nataly Catral

Notice: OK

Background Facts

Plaintiff Stella-Nataly Catral

brought this action suing Defendants General Motors, LLC and Does 1 through 100 pursuant to a January 24, 2024, Complaint alleging statutory claims arising from the Song-Beverly Warranty Consumer Act ("SBA").

The action settled around October 15, 2025, with Plaintiff filing a notice of conditional settlement on October 16, 2025, that provided an estimated dismissal date of February 13, 2026.

Now before the Court is Defendant's motion to strike or tax costs from Plaintiff's May 15, 2026, memorandum of costs in the amount of \$3,677.14.

Motion to Strike or
Tax Costs

Timeliness

The Court briefly addresses Defendant's initial argument that the memorandum of costs was untimely filed because it was filed beyond 180 days from October 15, 2025, i.e., the date Plaintiff signed the 998 offer leading to dismissal of this action.

Simply, the deadline in California

Rules of Court, rule 3.1700 had not run as of the time the present motion was filed on May 15, 2026.

A prevailing party who claims costs

must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. (Cal. Rules of Court, rule 3.1700(a)(1).)

Here, on December 15, 2025, the

Court ordered the Complaint dismissed without prejudice, with the Court retaining jurisdiction pursuant to Code of Civil Procedure section 664.6. (Dec. 15, 2025, Minute Order, p. 1.) The record fails to reflect that the clerk or any party served notice of the Court's December 15th minute order.

Consequently, the deadline to file Plaintiff's memorandum of costs was 180 days from the dismissal date of December 15, 2025, i.e., Saturday, June 13, 2026, pushed to Monday, June 15, 2026, by operation of law (Code Civ. Proc., §§ 10, 12, 12a), well after the filing date here: December 15, 2025.

The Court does not credit the

opposition arguments that the deadline for rule 3.1700 runs from signing of a section 998 agreement. Simply, such a signature does not connote the kind of conclusion to litigation contemplated in rule 3.1700. Moreover, Defendant's cited authorities stand for propositions other than, a 1:1, 'rule 3.1700 runs from the signing of a 998 offer' position.

Motion to Strike or

Tax Costs

i. Legal

Standard

In general, the “prevailing party” is entitled as a matter of right to recover costs for suit in any action or proceeding. (Code Civ. Proc., § 1032, subd. (b); *Santisas v. Goodin* (1998) 17 Cal.4th 599, 606; *Scott Co. Of Calif. v. Blount, Inc.* (1999) 20 Cal.4th 1103, 1108.) Assuming the “prevailing party” requirements are met, the trial court has no discretion to order each party to bear his or her own costs of suit. (*Michell v. Olick* (1996) 49 Cal.App.4th 1194, 1198; *Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 129.) The term “prevailing party” for costs purposes is defined by statute to include:

(1) The party with a net monetary recovery;

(2) A defendant who is dismissed from the action;

(3) A defendant where neither plaintiff nor defendant recovers anything; and

(4) A defendant as against those plaintiffs who do not recover any relief against that defendant.

(Code Civ. Proc., § 1032, subd. (a)(4).)

If the party does not fall within one of these four express categories, the court may exercise its discretion to award or deny costs. (See *Lincoln v. Schurgin* (1995) 39 Cal.App.4th 100, 105.)

If any party recovers other than monetary relief and in situations other than as specified, the “prevailing party” shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034. (Code Civ. Proc., § 1032, subd. (a)(4).) For example, even if a plaintiff maintains a net monetary recovery, in determining the prevailing party in the litigation, the trial court should also consider, if applicable, the defendant’s success on its declaratory relief claims and exercise its discretion to allow costs or not and, if allowed, to apportion

them as appropriate. (*Wolf v. Walt Disney Pictures & Television* (2008) 162 Cal.App.4th 1107, 1142; see, e.g., *Lincoln v. Schurgin*, supra, 39 Cal.App.4th at pp. 104-105 [when plaintiff wins net monetary recovery but defendant prevails in its cross-action for declaratory relief, case presents circumstance not otherwise specified; in that case, determination of prevailing party is matter within court's discretion].)

Allowable costs under Code of

Civil Procedure section 1033.5 must be reasonably necessary to the conduct of the litigation, rather than merely convenient or beneficial to its preparation, and must be reasonable in amount. An item not specifically allowable under Section 1033.5(a) nor prohibited under subdivision (b) may nevertheless be recoverable in the discretion of the court if they meet the above requirements (i.e., reasonably necessary and reasonable in amount). If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-774.)

A verified memorandum of costs is

prima facie evidence that the costs, expenses, and services therein listed were necessarily incurred. (*Rappenecker v. Sea-Land Serv., Inc.* (1979) 93

Cal.App.3d 256, 266.) A party seeking to tax costs must provide evidence to rebut this prima facie showing. (*Jones v. Dumrichob* (1998) 63

Cal.App.4th 1258, 1266 (*Jones*), superseded by statute on other grounds in Code Civ. Proc., § 998, subd. (c)(1) [whether costs permissible from filing of complaint or from date of 998 offer].) Mere statements unsupported by facts are insufficient to rebut the prima facie showing that costs were necessarily incurred. (*Jones v. Dumrichob*, supra, at p. 1266.) On the

other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (*Ibid.*)

Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. (*Ladas v. California State Automotive Assoc.*, supra, 19 Cal.App.4th at p. 774.) However, because the right to costs is governed strictly by statute, a court has no discretion to award costs not statutorily authorized. (*Ibid.*) Discretion is abused only when, in its exercise, the court "exceeds the bounds of reason, all of the circumstances being considered." (*Lincoln v. Schurgin*, supra, 39 Cal.App.4th at p. 105.)

"A prematurely filed memorandum of

costs is “a mere irregularity at best” that does not constitute reversible error absent a showing of prejudice’ and is treated ‘as being timely filed.’” (Lowry v. Port San Luis Harbor District (2020) 56 Cal.App.5th 211, 221 [affirming award of costs even though judgment was entered after memorandum of costs was filed]; accord. Haley v. Casa Del Rey Homeowners Assn. (2007) 153 Cal.App.4th 863, 880 [finding no reversible error where memorandum of costs was filed after jury returned special verdict but arguably before entry of judgment]; Lange v. Fisher (1983) 146 Cal.App.3d 113, 118 [reversing trial court order striking costs memorandum filed prior to entry of judgment because “the cost bill was timely served and filed and the trial court erred in granting plaintiff’s motion to strike it”].)

ii. Discussion

Here, Defendant challenges the May 15, 2026, memorandum of costs on the grounds that \$3,140.34 of the \$3,677.14 sought by Plaintiff in costs are improper. (Motion, pp. 6-7.)

After review, the Court addresses each ground for relief and makes a determination as follows.

(1) The Court finds insufficient merit to Defendant’s argument that filing and motion fees are not compensable because Plaintiff’s claims were baseless. In effect Defendant is arguing that Plaintiff should have never filed suit. Such a position does not rebut the presumption that the filing and motion fees costs were necessarily incurred.

(2) The Court finds insufficient merit to Defendant’s argument that a \$36.77 cost (see May 15, 2026, Memo of Costs, MC-011, p. 1, § 1.f.) should not be compensated because the cost related to an Order to Show Cause hearing that is not moving forward. The cost was necessarily incurred in the process of preserving Plaintiff’s rights in this litigation.

(3) The Court finds insufficient merit to Defendant’s argument that Plaintiff’s anticipated cost of \$25.70 should not be compensated. (See May 15, 2026, Memo of Costs, MC-011, p. 1, § 1.g., attach 1.g.) The record shows that the reply at issue was filed. (See Jul. 30, 2026, Reply.)

(4) The Court finds insufficient merit to the argument that Plaintiff cannot recover costs for filing a substitution of attorney, case management statement, or notice of settlement. Defendant does not elaborate why those costs are not necessarily incurred other than to confusingly argue that such costs are part of “overhead” without notable elaboration.

(5) The Court insufficient merit in the argument that Plaintiff cannot recover costs incurred by prior counsel. Defendant does not point to authority imposing such a limitation, which is particularly fatal where the costs statute does not contemplate a “prevailing party” within the lens of prior or current counsel.

(6) The Court finds insufficient merit in Defendant's arguments that expert fees should not be compensated insofar as Code of Civil Procedure section 1033.5 states that expert fees are only compensable as ordered by the Court. As argued in Plaintiff's opposition, which Defendant fails to address in its Reply, California courts have held that costs sought under the SBA provide broader relief than costs under section 1032. (Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137-138 [overturning trial court's denial of expert fees based on Code Civ. Proc., § 1033.5 (no expert fees without court order) based on the SBA's broader ambit as to costs, and remanding for determination of whether expert fees were reasonably incurred], disapproved on other grounds in Rodriguez v. FCA US LLC (Oct. 31, 2024) 17 Cal.5th 189, 204-205 [disapproval re: whether vehicle purchased with an unexpired manufacturer's new car warranty is not new motor vehicle under Song-Beverly Consumer Warranty Act unless warranty was issued with the sale].) Moreover, the Court determines that expert costs were reasonably incurred in advancing this litigation.

(7) The Court finds insufficient merit to the argument that an \$11.25 electronic filing fee, for lack of corresponding evidence, may be denied. This is not a substantive challenge of the cost.

(8) The Court finds insufficient merit to the argument that alternative dispute resolution costs were not reasonably incurred but were rather elective costs undertaken by Plaintiff. Such costs are patently connected to this litigation and to attempts to resolve the action. They were thus reasonably incurred.

3. Conclusion

Defendant General Motors LLC's
motion to strike or tax costs is accordingly DENIED.

The Court GRANTS costs and expenses
in the amount of \$3,677.14 for Plaintiff Stella-Nataly Catral.

Defendant General Motors LLC is
ORDERED to remit payment of \$3,677.14 to Plaintiff's counsel within 30 days of
notice of this Order.

Defendant General Motors LLC is
ordered to give notice.

Parties who intend to submit
on this tentative must send an email to the court at indicating intention to submit on the tentative
as directed by the instructions provided on the court website at www.lacourt.org. If
the department does not receive an email indicating the parties are submitting
on the tentative and there are no appearances at the hearing, the motion may be
placed off calendar. If a party
submits on the tentative, the party's email must include the case number and
must identify the party submitting on the tentative. If the parties do not submit on the
tentative, they should arrange to appear remotely.

DATED: August 11, 2026

MARK C. KIM

Judge of the
Superior Court